

Bhola Nath Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 15 April 2024 · 2024:AHC:64872-DB · Writ-C No. 6503 of 2024 · **Writ disposed; disputed final bill left to clause 6.5**

HEADNOTE

A consumer who still disputes the corrected final bill demanded for permanent disconnection must use clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench declined writ interference and disposed of the petition, leaving that remedy open.

FACTUAL SUMMARY

Bhola Nath Yadav asked for permanent disconnection of his electricity supply. A notice dated 26 October 2023 from respondent no. 4 stated that the request would be accepted only on payment of Rs 1,09,217 as the balance of electricity charges. In a personal affidavit filed in the writ, respondent no. 4 said the final bill had wrongly included a subsidy, that the error had been corrected, and that only Rs 88,175 was payable for permanent disconnection. The petitioner continued to dispute that amended bill.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

correctness of the final bill for permanent disconnection

HOLDING

A petitioner who disputes the correctness of the final bill demanded as a condition of permanent disconnection has a remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court therefore found no good ground to interfere in writ jurisdiction, disposed of the petition, and left the petitioner free to avail that remedy if so advised. ¶ 4-6

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The challenge to the correctness of the amended final bill of Rs 88,175, demanded for permanent disconnection, was treated as a dispute for the remedy under clause 6.5. ¶ 4-5

article-226-alternate-remedy-up-supply-code-6.5 Because the clause 6.5 remedy was available, the Division Bench declined to examine the bill in writ jurisdiction and disposed of the petition, leaving the Code remedy open. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS 88,175 WAS THE CORRECT SUM PAYABLE FOR PERMANENT DISCONNECTION AFTER THE SUBSIDY CORRECTION

The Court did not examine the amended bill and left the petitioner to clause 6.5 if so advised. ¶ 3-5